

MULRY, JR. v LAKESIDE VENTURES, LLC, ET AL.

23CV47109

CROSS-DEFENDANT MULRY, JR.'S DEMURRER TO COUNTER COMPLAINT

This action is one of a number of matters arising from disputes concerning ownership and management of Beach Lake Village mobile home park in Mokelumne Hill. Plaintiff/cross-defendant has demurred to the cross-complaint.

All matters noticed for the Law & Motion calendar shall include the following language in the notice:

3.3.7 Tentative Rulings (Repealed Eff. 7/1/06; As amended 1/1/18) All parties appearing on the Law and Motion calendar shall utilize the tentative ruling system. Tentative Rulings are available by 2:00 p.m. on the court day preceding the scheduled hearing and can be accessed either through the court's website or by telephoning 209-754-6285. The tentative ruling shall become the ruling of the court, unless a party desiring to be heard so advises the Court no later than 4:00 p.m. on the court day preceding the hearing including advising that all other sides have been notified of the intention to appear by calling 209-754-6285. Where appearance has been requested or invited by the Court, all argument and evidence is limited pursuant to Local Rule 3.3. All matters noticed for the Law & Motion calendar shall include the following language in the notice:

Pursuant to Local Rule 3.3.7, the Court will make a tentative ruling on the merits of this matter by 2:00 p.m. the court day before the hearing. The complete text of the tentative ruling may be accessed on the Court's website or by calling 209-754-6285 and listening to the recorded tentative ruling. If you do not call all other parties and the Court by 4:00 p.m. the court day preceding the hearing, no hearing will be held and the tentative ruling shall become the ruling of the court. [Emphasis in original.]

Failure to include this language in the notice may be a basis for the Court to deny the motion.

Based on the foregoing, the motion is **DENIED** without prejudice to renew the motion complying with Rule 3.3.7, if otherwise timely under the law of demurrers. The Clerk shall provide notice of this Ruling to the parties forthwith. No further formal Order is required.

J E LEY EARTHMOVING, LLC v VOORHEES, et al.

22CV45801

PLAINTIFF'S SPECIAL MOTION TO STRIKE CLAIMS OF FIRST AMENDED CROSS-COMPLAINT

Before the Court in this breach of contract complaint/substandard work cross-complaint case is a special motion to strike filed by Plaintiff/Cross-Defendant J E Ley Earthmoving, LLC ("Ley") on the grounds that certain allegations in the first amended cross complaint (FACC) are barred by California's anti-SLAPP statute, codified in Code of Civil Procedure (CCP) section 425.16.

Plaintiff's Request for Judicial Notice is **GRANTED**.

Procedural History

On March 11, 2024, Defendants filed their First Amended Cross Complaint ("FACC"), alleging causes of action for: 1) Breach of Written Subcontract, 2) Negligence, 3) Restitution to Disgorge Unjust Enrichment, 4) Common Count, 5) Reformation, and 6) Declaratory Relief. In the FACC, Defendants also brought new allegations related to the defectiveness of the mechanic's lien and the claimed damages said lien had caused them.

In its initial motion to strike, Ley sought to strike all references to the mechanic's lien and lis pendens. However, on Reply Ley contends that the Sixth Cause of Action for Declaratory Relief is "superfluous, as the validity of the liens will be determined as part of Ley's foreclosure action." (Reply p. 7.) Accordingly, Ley withdrew the request to strike the Sixth Cause of Action (Paragraphs 61-66) of the FACC.

Legal Standard

"The anti-SLAPP procedures are designed to shield a defendant's constitutionally protected conduct from the undue burden of frivolous litigation." (*Baral v. Schnitt* (2016) 1 Cal.5th 376, 393.) "The anti-SLAPP statute does not insulate defendants from any liability for claims arising from the protected rights of petition or speech. It only provides a procedure for weeding out, at an early stage, meritless claims arising from protected activity." (*Id.* at 384.)